

Applicable Law Acts

Applicable Law Acts & Synthesis

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User Query :

I gave my mobile number, email address, identification details and other personal information to an online service for account verification. A few months later, I learned that the company's database had been accessed by an unauthorized person and customer information was circulating online. The company knew about the incident but did not inform affected users for some time. What legal provisions may apply?

Job Id. :

qwen3-30b/Scenario 10/Combined Act

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Date :

29 August 2026

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 43

— **Penalty and compensation for damage to computer, computer system, etc.**

The database was accessed by an unauthorised person.

Section 66

— **Computer related offences**

Applies where the relevant **section 43** act was done dishonestly or fraudulently.

Section 43A

— **Compensation for failure to protect data**

Potentially relevant if the body corporate handled sensitive personal data/information, was negligent in reasonable security practices, and caused wrongful loss/gain.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The attacker-side theory is unauthorised access under **section 43** with **section 66** where dishonest/fraudulent conduct is proved. Company liability under **section 43A** is conditional on the statutory sensitive-data, negligence and loss/gain requirements. Do not automatically treat a breach caused by an outside attacker as a contractual/confidentiality disclosure offence.

✓ **STRENGTHS & RIGHTS**

1 The scenario expressly states unauthorised database access.

✗ **RISKS & OBLIGATIONS**

1 A data breach does not by itself prove **section 43A** negligence, and the IT Act does not create the DPDP-style breach-notification duty.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1. Preserve breach notices, forensic reports, account records and evidence showing when the company became aware.

BHARATIYA NYAYA SANHITA (BNS), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The scenario is primarily governed by IT Act computer-access provisions and data-protection duties. No specific BNS offence is necessary on the stated facts.

✓ STRENGTHS & RIGHTS

- 1 Avoids duplicate or invented criminal sections.

✗ RISKS & OBLIGATIONS

- 1 Additional fraud/extortion/misuse facts could introduce BNS offences.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1. Keep BNS separate from the cyber-access analysis.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

Logs, breach records and online copies are electronic/digital records.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant if breach logs and digital records are tendered as evidence.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- BSA relevance is evidentiary only.

✓ STRENGTHS & RIGHTS

- 1
- Server logs and forensic records can establish unauthorised access and timing.

✗ RISKS & OBLIGATIONS

- 1
- BSA does not create the data-security or notification duty.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1.
- Preserve logs and forensic chain of custody.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

APPLICABLE SECTIONS

Section 8 (5) — Reasonable security safeguards

The Data Fiduciary must protect personal data in its possession/control by reasonable security safeguards.

Section 8 (6) — Personal data breach notification

On a personal-data breach, the Data Fiduciary must notify the Board and each affected Data Principal in the manner prescribed.

Section 13 — Right of grievance redressal

Relevant to grievance handling by the Data Fiduciary/Consent Manager.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 Sections 8(5) and 8(6) are the clearest DPDP provisions for security safeguards and breach notification. The facts expressly state unauthorised database access and delayed user notification.

✓ STRENGTHS & RIGHTS

1 The scenario directly identifies a personal-data security incident and delayed notice.

✗ RISKS & OBLIGATIONS

1 Keep the security-safeguard and breach-notification duties distinct from access/correction rights, and distinguish the current commencement status.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

2. As of 29 Aug 2026 these substantive duties are not yet in force; retain them as prospective/doctrinal mappings in the benchmark.
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